

**RECORD OF PROCEEDINGS FOR THE GOVERNING BODY
OF THE CITY OF CHEYENNE**
Office of City Clerk

September 28, 2009

The Governing Body of the City of Cheyenne met in regular session on this date beginning at 6:00 p.m. in Council Chambers. Present were: MAYOR - Richard L. Kaysen; COUNCIL MEMBERS: Ms. Ash, Mr. Brown, Ms. Broyles, Mr. Collins, Dr. Rinne and Mr. Spiker. Absent: Ms. Case, Mr. Pierson and Mr. Valdez. The pledge of allegiance was recited.

Also present: Carol Intlekofer, City Clerk; Barb Dorr, City Treasurer, and Dan White, City Attorney.

Mayor Kaysen welcomed and introduced the following delegates representing Cheyenne's Sister City Voghera, Italy in attendance at the meeting: Dr. Professor Daniele Salerno, Dott. Carolo Gianotti, Carlo Riccardi and Anna Riccardi. He advised Voghera has been a Sister City since 2002. Dr. Salerno reviewed the City of Voghera's history, its location within Italy, its culture, terrain, notable cuisine, and agricultural, industrial and transportation crossroad similarities shared between Voghera and Cheyenne. As a western similarity, he noted that Mr. Riccardi is the owner of the Cowboy Guest Ranch. In recognition of the Sister City relationship, Dr. Salerno presented plaques depicting the insignia of Voghera to Mayor Kaysen and Council President Patrick Collins. In return, on behalf of the City of Cheyenne and its residents Mayor Kaysen presented the delegation with a rustic framed rope depicting the word Cheyenne for placement at Voghera's City building.

City of Cheyenne employees were recognized by Mayor Kaysen for receiving the following awards at the 2009 Wyoming Planning Association Conference: Cheyenne area Metropolitan Planning Organization, Urban Planning Project of the Year for the Cheyenne Wayfinding Plan, project coordinator Sreyoshi Chakraborty; Jeanie Anderson, New Planning Professional of the Year in the State of Wyoming, and Western Planner Magazine's Sheldon D. Gerber Merit Award for Excellence recognizing the City of Cheyenne and Project Coordinator Matt Ashby for excellence in environmental planning in the Project of the Year Category for the Belvoir Ranch Master Plan.

Consent Agenda. (All agenda items listed with the designation of [CA] are considered to be routine items by the governing body and will be enacted by one motion. There will be no separate discussion on these items unless a member of the governing body so requests and support by two other members is received. Any item removed from the Consent Agenda will be considered in its normal sequence on the agenda.) Mr. Collins moved to approve Consent Agenda items, seconded by Mr. Brown. Motion carried. Voting "yes" – all members of the governing body present.

[CA] MINUTES FROM REGULAR MEETING OF THE GOVERNING BODY ON SEPTEMBER 14, 2009. Motion (per Consent Agenda) carried.

[CA] MINUTES FROM VOUCHERS MEETING OF THE GOVERNING BODY ON SEPTEMBER 21, 2009. Motion (per Consent Agenda) carried.

Mr. Spiker moved to approve payment of vouchers as presented, seconded by Mr. Collins. Mr. Brown declared a conflict of interest (business interest) due to vouchers payable to Ameri-Tech HVAC Services (\$114.89 and \$1,894.96) and vacated Council Chambers. Motion carried. Voting “yes” – all members of the governing body present in Council Chambers. Following announcement of the vote, Mr. Brown returned to Council Chambers.

“AN ORDINANCE AMENDING VARIOUS SECTIONS OF TITLE 5, BUSINESS LICENSES AND REGULATIONS, CHAPTER 5.68, BODY ART ESTABLISHMENTS AND OPERATIONS, OF THE CODE OF THE CITY OF CHEYENNE.” Reporting for Finance Committee, Ms. Ash moved to approve on second reading, seconded by Ms. Broyles. Upon inquiry, Gary Hickman, Cheyenne-Laramie County Health Dept., Division of Environmental Health, advised the ordinance amends health reporting requirements for body art establishments and provides for licensing of body artists. He explained National Environmental Health guidelines were reviewed and business operators and artists support the proposed amendments and requirements, and indicated Environmental Health will help guide the establishments in providing a bloodborne pathogen written exposure control plan, which is also a requirement through OSHA. Upon further inquiry, Mr. Hickman explained how Environmental Health will permit current licensees and body artists at renewal and City Clerk Carol Intlekofer clarified current operators will have until Jan. 1, 2010 to meet requirements of the ordinance through the City Clerk’s office; new applicants for a license or permit would have to meet the requirements of the ordinance upon its approval and publication. Upon inquiry regarding whether the term “pre-sterilized” contained in the definition of “body piercing” had the same meaning as “sterilized”, Mr. Hickman clarified individuals can bring in their own studs which have to be sterilized by the operator, or they can purchase pre-sterilized studs from the establishment. Dr. Rinne moved to delete “pre-“ from the term “pre-sterilized” in the three areas referenced within the definition, seconded by Mr. Collins. In response to query concerning whether the ordinance changes conflict with OSHA requirements, Mr. Hickman advised he did not believe there were any conflicts as OSHA requirements involve bloodborne pathogens, but explained he would need to research this to know for sure. Following comments, motion to amend carried. Voting “yes” – all members of the governing body present. Main motion as amended carried. Voting “yes” – all members of the governing body present.

“AN ORDINANCE AMENDING TITLE 5, BUSINESS LICENSES AND REGULATIONS, CHAPTER 5.04, BUSINESS LICENSES GENERALLY, SECTION 5.04.030, TYPES OF BUSINESSES, ACTIVITIES AND EVENTS, AND CHAPTER 5.08, BUSINESS LICENSE FEES, SECTION 5.08.250, BODY ART ESTABLISHMENTS AND OPERATIONS, OF THE CODE OF THE CITY OF CHEYENNE, PERTAINING TO BODY ARTISTS AND PERMIT FEES.” Ms. Ash moved to approve on second reading, seconded by Ms. Broyles. Motion carried. Voting “yes” – all members of the governing body present.

“AN ORDINANCE DELETING SECTION 10.56.060, PERMIT FEE-PAYMENT, AND SECTION 10.56.100, INSTALLATION COST-PAYMENT, OF CHAPTER 10.56, HANDICAPPED PARKING SPACES, OF TITLE 10, VEHICLES AND TRAFFIC, OF THE CODE OF THE CITY OF CHEYENNE.” Ms. Ash moved to approve on second reading, seconded by Ms. Broyles. Motion carried. Voting “yes” – all members of the governing body present.

“AN ORDINANCE AMENDING TITLE 17, ZONING, CHAPTER 17.08, ZONING DISTRICTS ESTABLISHED AND SECTION 17.08.040 CHEYENNE CITY MAP OF THE

CHEYENNE CITY CODE, BY CHANGING THE ZONING CLASSIFICATION FROM LR-2 LOW DENSITY RESIDENTIAL-DEVELOPING DISTRICT TO MR-1 MEDIUM DENSITY RESIDENTIAL-ESTABLISHED DISTRICT FOR LOTS 1- 8, BLOCK ONE; LOTS 1- 8, BLOCK TWO; LOTS 1- 4, BLOCK THREE; GOODWATER ADDITION, CHEYENNE, WYOMING (LOCATED EAST OF AND ADJACENT TO VAN BUREN AVENUE, SOUTH OF DELL RANGE BOULEVARD).” Reporting for Public Services Committee, Mr. Brown moved to approve on second reading, seconded by Mr. Collins. Upon inquiry, Lisa Pafford, Asst. Director of Building and Development, advised the applicant is requesting a zone change from LR-2 to MR-1 to allow for a smaller lot size enabling more units on the property. She advised MR-1 does allow for multi-family units but would require Board of Adjustment approval if apartment units were proposed. Comments followed on concerns with zoning from LR-2 to MR-1 and potential of apartment buildings being built rather than town homes or duplexes, resulting in increased density. John Steil, Steil Surveying Services, agent for the applicant, clarified the applicant is proposing to build town homes, and advised the change in zoning classification will make the project more feasible, and noted MR-1 zoning is in the nearby area. He also noted there will be no problem with height requirements. He explained a MR-1 zone will allow smaller town homes to be built than what the LR-2 zone requires, allowing the building of more town homes. Upon inquiry, Ms. Pafford provided information on density and parking requirements relative to when a replatting action may be involved, minimum setback requirements and distances between buildings. Comments followed on property layout for the town homes, setbacks, garages facing the street-side of the property, and PlanCheyenne relative to product materials utilized. Mr. Steil advised the buildings will be staggered, not one long row of buildings. Motion carried. Voting “yes” – all members of the governing body present with the exception of Ms. Broyles voting “no”.

“AN ORDINANCE AMENDING TITLE 17, ZONING, CHAPTER 17.08, ZONING DISTRICTS ESTABLISHED AND SECTION 17.08.040 CHEYENNE CITY MAP OF THE CHEYENNE CITY CODE, BY CHANGING THE ZONING CLASSIFICATION FROM PUD PLANNED UNIT DEVELOPMENT DISTRICT TO CB COMMUNITY BUSINESS DISTRICT FOR ALL OF BLOCK ONE, CATHEDRAL COMMONS, CHEYENNE, WYOMING (LOCATED AT THE NORTHEAST CORNER OF THE INTERSECTION OF YELLOWSTONE ROAD AND GARDENIA DRIVE).” Mr. Brown moved to approve, seconded by Mr. Collins. Comments followed regarding architectural and landscaping requirements for a PUD vs. CB zone, and proposed property covenants and Home Owners Association (HOA) to be formed to enforce the covenants. Dr. Rinne noted for the record that if in the future the area is replatted, a review of the covenants and HOA documents would be requested. Bill Abernathy, representative for The Commons, advised the Covenants, Conditions and Restrictions (CCR) and Homeowners Association documents have been drafted, and stated his assurance that they will mirror the documents relative to the new zone change. Motion carried. Voting “yes” – all members of the governing body present.

“AN ORDINANCE AMENDING SECTION 12.04.010 OBSTRUCTION ON STREETS, AND SECTION 12.04.080, CONSTRUCTION AND REPAIR-PERMITS REQUIRED-FEES-EXCEPTION, OF CHAPTER 12.04, STREETS, SIDEWALKS AND DRIVEWAYS GENERALLY, OF TITLE 12, STREETS, SIDEWALKS AND PUBLIC PLACES, OF THE CODE OF THE CITY OF CHEYENNE, WYOMING” -- referred to Finance Committee.

“A RESOLUTION ADOPTING AN AMENDMENT TO THE FUTURE LAND USE PLAN MAP IN PLANCHEYENNE, THE MASTER PLAN FOR THE CITY OF CHEYENNE AND THE

COMPREHENSIVE PLAN FOR PORTIONS OF LARAMIE COUNTY, AMENDING THE LAND USE PLAN MAP CATEGORY FROM OPEN SPACE AND PARKS TO COMMUNITY BUSINESS FOR APPROXIMATELY 28 ACRES AT THE SOUTHEAST QUADRANT OF THE INTERSECTION OF WINDMILL ROAD AND DELL RANGE BOULEVARD.” Mr. Brown moved to adopt, seconded by Mr. Collins. Motion carried. Voting “yes” – all members of the governing body present with the exception of Ms. Ash, Ms. Broyles and Dr. Rinne voting “no”. (#5162)

[CA] “A RESOLUTION RE-APPROPRIATING THE FISCAL YEAR 2010 BUDGET OF THE CITY OF CHEYENNE ACCORDING TO THE PROVISIONS OF WYO. STAT. §16-4-112 AND §16-4-113.” Motion (per Consent Agenda) carried. (#5163)

“A RESOLUTION REPEALING RESOLUTION NO. 5084; CREATING A NEW RESOLUTION ESTABLISHING GOLF COURSE USER FEES AND CATEGORIES FOR THE AIRPORT GOLF COURSE AND KINGHAM PRAIRIE VIEW GOLF COURSE; AND PROVIDING FOR THE DIVISION OF REVENUES FROM SAID FEES TO BE DEPOSITED BETWEEN THE GENERAL AND CAPITAL IMPROVEMENT FUNDS.” Ms. Ash moved to adopt, seconded by Ms. Broyles. Ms. Ash moved to amend by substitute, seconded by Ms. Broyles. Todd Feezer, Asst. Parks and Recreation Director, clarified the substitute corrects an error involving the inclusion of annual pass fee dollar amounts that were inadvertently left out of the original resolution. Motion to amend carried. Voting “yes” – all members of the governing body present. Main motion as amended by substitute carried. Voting “yes” – all members of the governing body present. (#5164)

[CA] “A RESOLUTION TO DOCUMENT CITY OF CHEYENNE IMPLEMENTATION OF THE PROVISIONS OF SECTION 414(H)(2) OF THE INTERNAL REVENUE CODE, REGARDING EMPLOYER PICK-UP OF EMPLOYEE RETIREMENT CONTRIBUTIONS TO THE WYOMING RETIREMENT SYSTEM.” Motion (per Consent Agenda) carried. (#5165)

[CA] “A RESOLUTION AUTHORIZING THE CITY OF CHEYENNE TO ENTER INTO PRELIMINARY NEGOTIATIONS WITH THE BOARD OF DIRECTORS OF THE CHEYENNE LITTLE THEATRE PLAYERS FOR THE PURCHASE OF THE ATLAS THEATER” -- referred to Finance Committee (sponsors - Ms. Ash, Mr. Brown and Mr. Pierson).

LEASES/CONTRACTS/LEGAL:

[CA] Agreement between the City of Cheyenne, Office of Youth Alternatives, and Laramie County School District No. 1, for counseling services to elementary and secondary age children who are attending the PEP/TRC Center. Motion (per Consent Agenda) carried (\$76,110.00 revenue to the City). (#5463)

[CA] Agreement between the City of Cheyenne, Office of Youth Alternatives, and Laramie County School District No. 1, for family counseling for school referred students/families. Motion (per Consent Agenda) carried (\$144,170.00 revenue to the City). (#5464)

[CA] Agreement between the City of Cheyenne, Office of Youth Alternatives, and Laramie County School District No. 1, for counseling services to elementary and secondary age students with disabilities who are attending the PEP/TRC Center. Motion (per Consent Agenda) carried (\$92,570.00 revenue to the City). (#5465)

[CA] Agreement between the City of Cheyenne, Office of Youth Alternatives, and Laramie County School District No. 1, for counseling services to elementary and secondary age children with disabilities on I.E.P.s. Motion (per Consent Agenda) carried (\$9,020.00 revenue to the City). (#5466)

[CA] Agreement between the City of Cheyenne and Cheyenne Light Fuel & Power for extension of electrical services to the Construction and Demolition Building at the Landfill (State Land & Investment Board). Motion (per Consent Agenda) carried (not to exceed \$84,016.00). (#5467)

CHANGE ORDERS/CONTRACT MODIFICATIONS:

[CA] Contract Modification No. 1 to Contract No. 5376 between the City of Cheyenne and RRT Design and Construction for construction inspection, shop drawing and equipment procurement bid package for the Transfer Station Addition (State Land & Investment Board). Motion (per Consent Agenda) carried (not to exceed \$25,000.00). (#5376)

[CA] Contract Modification No. 1 to Contract No. 5305 between the City of Cheyenne, Metropolitan Planning Organization, and Quinby Clune Design to allow for additional design work for the Cheyenne Wayfinding Plan Phase II (MPO/Federal Funding). Motion (per Consent Agenda) carried (not to exceed \$15,364.00). (#5305)

[CA] Contract Modification No. 2 to Contract No. 5260 between the City of Cheyenne and Tarco, Inc., for partial reduction of retainage fees for the Dry Creek-Sheridan Reach Flood Control Improvements Project (~~1% Specific Purpose Sales and Use Tax~~ Optional 1% Sales Tax). Motion (per Consent Agenda) carried (\$387,288.78 to contractor). (#5260)

[CA] Contract Modification No. 1 to Contract No. 5350 between the City of Cheyenne and A.V.I. P.C. for construction administration of the Carey Ave. and Pioneer Ave. Rehabilitation Project. (2007-2010 1% Sales Tax) -- referred to Finance Committee.

[CA] Contract Modification No. 3 to Contract No. 5260 between the City of Cheyenne and Tarco, Inc. for additional grading and concrete work around the new Greenway section and new restrooms in Cahill Park. (1% Specific Purpose Sales and Use Tax) -- referred to Finance Committee.

CONSIDERATION OF BIDS:

[CA] Consideration of Bid #M-5-10 for a contract between the City of Cheyenne, Engineering Department, and Reiman Corp., for the Carey Ave. and Pioneer Ave. Rehabilitation Project (2007-2010 1% Sales Tax) -- referred to Finance Committee.

[CA] Consideration of Bid #M-8-10 for a contract between the City of Cheyenne, One Percent Construction Division, and L&M Construction Co., for the FY 2009 Crack Seal Project (2007-2010 1% Sales Tax) -- referred to Finance Committee.

[CA] Consideration of Bid #M-10-10 for a contract between the City of Cheyenne, Special Projects Division, and Spiegelberg Lumber and Building Co., of Laramie, WY for the construction of the Operations and Restroom Facility for the Cheyenne Depot Plaza Project (State Land & Investment Board) -- referred to Finance Committee.

ANNOUNCEMENTS/REPORTS/MOTIONS:

Annual Report to the City of Cheyenne regarding capital improvements made at the Airport Golf Course and Airport Golf Course Club House as required by Lease Agreement 2833 -- referred to Finance Committee.

Announcement was made of the re-appointment of Judith Lane, to the Cheyenne Housing Authority Board, to be confirmed October 12, 2009.

Announcement was made of the appointment of Esther Davison, Dave Serelson, Dr. Richard Berry, Jeff Lamm, Gus Lopez, Jeff Schulz, Danny Glick, Bill Long, Melinda McCorkle, Gay VanHorn, and Rick Robinson to the Laramie County Community Juvenile Services Joint Powers Board, to be confirmed October 12, 2009.

OTHER CITY BUSINESS:

City Attorney Dan White requested the governing body meet in executive session to discuss a matter involving the City and potential litigation. Mr. Collins moved to meet in executive session, seconded by Mr. Brown. Motion carried. Voting "yes" – all members of the governing body present. Mayor Kaysen announced the motion carried and members would meet in executive session in Council Chambers, not open to the public, following a 5 minute recess; that there would be no action taken by the governing body as a result of the executive session, and that the regular City Council meeting would be officially concluded at the close of the executive session. (Clerk's Note: Executive session began at 6:45 p.m.)

There being no further business to come before the governing body prior to the executive session, the meeting was officially adjourned at 7:09 p.m. following closure of the executive session.

Submitted by,

Carol Intlekofer, MMC
City Clerk

This notice is available in alternative, accessible formats upon request.

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